

6	Lukash v. Avid Bioservices, Inc.	O/C
7	Dahleh v. NPI Debt Fund II, LP	O/C
8	Nichols v. Mojodojo Cali, LLC	The motion of plaintiff Summer Nichols (Plaintiff) for leave to file a first amended complaint is GRANTED. (Code Civ. Proc., § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The Court finds Plaintiff has shown the interests of justice support granting the motion. There appears to be no prejudice that would result from the amendment as trial is not set to commence until August 2027. Moreover, defendant Mojodojo Cali, LLC d/b/a Sky Zone Mission Viejo (Defendant) makes no argument that it would be prejudiced by the amendment. Defendant argues the amendment is futile because the proposed amended complaint does not supply facts sufficient to state gross negligence. This argument is more suitably addressed by demurrer or other appropriate proceedings. (<i>See Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)</i> (1989) 213 Cal.App.3d 1045, 1048 “[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”).) Accordingly, the motion is GRANTED. The First Amended Complaint is to be separately filed within 7 days of the date of this order. Counsel for Plaintiff is ordered to give notice of this ruling.
9	Trillo v. American Honda Motor Co.	Cont. to 10/5
10	Lozano v. Absolute Law Group	Before the Court is a motion to compel arbitration and stay proceedings filed by defendants Absolute Law Group, PC and Michael Banks (Defendants) against plaintiff Nanci Lozano. For the reasons set forth below, the motion is DENIED. Defendants met their burden to show the existence of a written arbitration agreement that covers Plaintiff’s claims. (Code of Civ. Proc. § 1281.2; see also <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565; Declaration of Freddie V. Vega, Ex. A.) However, Plaintiff met her burden the arbitration agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, 9 U.S.C. § 401 et. seq. (EFAA).